

SUPREME COURT OF PAKISTAN

(Review Jurisdiction)

13/26

Present:

Justice Shahid Bilal Hassan
Justice Shakeel Ahmad

Civil Petition No. 2774 of 2025

(For review of judgment dated 04.06.2025, passed by the Lahore High Court, Multan Bench, Multan in Civil Revision No. 1659 of 2019)

Khawaja Farman Raza

...Petitioner(s)

Versus

Province of Punjab through District Collector,
Bhakkar & others

...Respondent(s)

For the Petitioner(s) : Syed Qalb-i-Hassan, ASC

For the Respondent(s) : Mr. Khalid Masood Ghani, Asst.
Advocate General, Punjab (**For resps. No. 1-4**)
Mr. Ajmal Ghaffar Toor, ASC (**For resp. No. 5**)
Ex.parte (**resp. No. 6**)
Mr. Jam Khurshid Ahmed, ASC (**For resp. No. 7**)

Date of Hearing : 03.03.2026

JUDGMENT

SHAKEEL AHMAD, J.- This petition calls into question the judgment dated 04.06.2025 ("**impugned judgment**"), passed by the Lahore High Court, Multan Bench, Multan, ("**High Court**"), whereby rejection of the plaint on the ground of *res judicata* was set aside and the case was remanded to the trial Court for decision afresh on merits, after recording pro and contra evidence.

2. Briefly stated, the relevant facts are that respondents No. 5 to 7 instituted a suit for declaration and permanent injunction, asserting that Site Plan No. 125 dated 15.03.1986 and the amended Site Plan No. 12 dated 06.08.2018 were void, without jurisdiction, and the result of fraud and collusion on the part of the petitioners. They further sought a decree for permanent injunction restraining the petitioners from raising any construction for a sect-specific mosque and from promoting sectarian hatred. It was their case that pursuant to the judgment and decree dated 03.05.1984 passed in an earlier suit instituted by their predecessor-in-interest, the Court had cancelled the earlier Site Plan and held that only a mosque could be constructed on the suit property and that the same was to remain open for use by all Muslims irrespective of sect. According to the respondents, the

petitioners, in collusion with the concerned officials, subsequently succeeded in obtaining approval of a Site Plan for “Masjid Fatima” meant for the Shia sect. Upon service of summons, the petitioners entered an appearance before the trial Court and filed an application under Order VII Rule 11, C.P.C., seeking rejection of the plaint on the ground that an earlier suit between the parties concerning the same subject matter had already been decided through judgment and decree dated 03.05.1984, rendering the subsequent suit not maintainable. The trial Court allowed the application and rejected the plaint vide order dated 22.07.2019, which was upheld in appeal through judgment dated 28.08.2019. Feeling aggrieved, respondent No. 5 filed Civil Revision Petition before the High Court, which was allowed through the impugned judgment.

3. After hearing the learned counsel for the parties at length and examining the record, we are of the view that the controversy raises important questions concerning the status of a mosque in Islam, the right of worship of different sects, the scope and application of Section 11, C.P.C. (*res judicata*), and the role of the administration in maintaining peace and public order.

4. In Islam, a mosque is not merely a physical structure of bricks and mortar but a sacred institution embodying the fundamental principles of *Tauheed* (the oneness of Allah, the Almighty), unity, brotherhood, and equality among believers. The concept of the mosque reflects the collective spiritual life of the Muslim community, where distinctions of lineage, wealth, or social status dissolve in the shared act of worship. The Holy Qur’an repeatedly emphasizes unity and cohesion among believers. Allah, the Almighty, commands:

“And hold firmly together to the rope of Allah and do not become divided.”¹

“The Mosques of Allah are only to be maintained by those who believe in Allah and the Last Day”²

These injunctions demonstrate that a mosque is not the preserve of any particular group but a place dedicated to the worship of Allah and the spiritual fellowship of the Muslim community. The importance of congregational worship is emphasized in the traditions of the Holy

¹ Holy Qur’an, Surah Aal-i-Imran 3:103

² Holy Qur’an Surah Al-Taubah 9:18

Prophet Muhammad (PBUH), who stated in *Sahih Bukhari* and *Sahih Muslim* that prayer offered in congregation is twenty-seven times superior to prayer performed individually. Historical practice during his lifetime further illustrates the inclusive character of the mosque: *Masjid al-Nabawi* in Madinah was open to all Muslims without distinction of colour, lineage, or tribal affiliation, while *Masjid al-Haram* in Makkah accommodates Muslims of different schools of thought, who, despite juristic differences in matters of *fiqh*, stand shoulder to shoulder in prayer within the same sacred precincts. Islam does not recognize sectarian segregation in places of worship. All major schools of thought, including Sunni (Hanafi, Shafi'i, Maliki, Hanbali) and Shia (Jafri), share the same Qibla, Qur'an, and fundamental pillars of Islam. Minor ritual differences, such as raising hands (*Raf' ul-Yadain*), saying Ameen aloud or silently, or folding arms during prayer, are juristic differences (*ikhtilaf-e-fiqhi*), not differences of creed, and are insufficient to exclude any believer from access to mosques.

5. Under Article 20 of the Constitution of the Islamic Republic of Pakistan, 1973, every citizen has the right to profess, practice, and propagate his or her religion, subject to law, public order, and morality, and every religious denomination has the right to establish and maintain its religious institutions. However, once a mosque is dedicated as a *waqf*, it ordinarily becomes a public place of worship, unless it is specifically shown to be a private mosque. The general principle is that mosques are for Allah and for all Muslims, and no Muslim can ordinarily be restrained from offering prayer therein, unless his presence creates a clear and imminent breach of peace. Mere sectarian labelling does not automatically convert a public mosque into an exclusive denominational property, and disputes over management should not deprive Muslims of their right to worship. The mere inscription of "Masjid Ahle Tashi" on the façade of a mosque does not, by itself, confer legal authority to exclude other Muslims, unless the dedication and use of the mosque specifically demonstrate that it is a private denominational *waqf*. Where differences in prayer method or practice are likely to give rise to serious disturbance, the district administration may, in exercise of powers under Sections 144, 145, and 107, Cr.P.C., temporarily regulate the use of the mosque to preserve public order and tranquility.

6. Turning to the applicability of *res judicata*, it is well settled that the doctrine operates where (i) the matter in issue directly and

substantially is the same, (ii) between the same parties, and (iii) has been finally decided by a competent Court of law. In the present case, the second suit filed by respondents No. 5 to 7 arises from a distinct cause of action and concerns a materially altered set of facts. Accordingly, it cannot be said to be barred under Section 11, C.P.C. The High Court found that the second suit involved a changed design and a fresh cause of action, and in consequence set aside the orders of the lower *fora* which had rejected the plaint on the ground of *res judicata*. In our view, the impugned judgment of the High Court does not suffer from any illegality or jurisdictional defect that would warrant interference.

7. Before parting with this judgment, we deem it appropriate to observe that disputes concerning mosques implicate not only private claims but also public rights, and the Courts have consistently discouraged multiplicity of litigation in such matters where an amicable or administrative settlement is feasible. It is desirable that differences relating to the management, use, or administration of mosques be resolved with sensitivity to the wider community, so as to maintain harmony, protect the sanctity of places of worship, and avoid unnecessary judicial intervention that may disrupt public peace and order.

In the end, we would like to sum up our discussion with the following couplet of Allama Muhammad Iqbal:

ایک ہو مسلم حرم کی پاسبانی کے لیے

نیل کے ساحل سے لے کر تابخاک کاشغر

8. In view of the foregoing discussion, this petition lacks merit and is dismissed. Leave declined. No order as to costs.

Islamabad, the

3rd March, 2026

Approved for reporting

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